

Court No. - 5

Case :- WRIT - C No. - 15633 of 2020

Petitioner :- Abrar

Respondent :- State Of U P And Another

Counsel for Petitioner :- Mahendra Prakash

Counsel for Respondent :- C.S.C., Rajesh Yadav

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

Heard learned counsel for the petitioner, the learned standing counsel for the respondent No.1 and Sri Rajesh Yadav, learned counsel for the respondent No.2.

This writ petition has been filed challenging the order dated 27.06.2020 passed by the Executive Engineer, Paschimanchal Vidyut Vitran Nigam Limited, Hapur determining the amount of arrears of Rs.1,81,302/-. The electricity connection has also been disconnected by the impugned order.

Learned counsel for the respondent No.2 submits that against the impugned order, the petitioner has a remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005 and, therefore, the petitioner may approach the Executive Engineer.

In view of the statement made by the learned counsel for the respondent No.2, **this writ petition is disposed off** giving liberty to the petitioner to approach the competent authority for redressal of his dispute under Clause 6.5 of the U.P. Electricity Supply Code, 2005. If the petitioner approaches the competent authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005 within two weeks from today along with a copy of this order, the competent authority shall decide the dispute expeditiously, preferably within next three weeks, in accordance with law after affording reasonable opportunity of hearing to the petitioner.

It is made clear that we have not expressed any opinion on merits of the case of the petitioner.

Order Date :- 7.10.2020

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